

Contentious Chamber

Decision on the merits 103/2024 of August 14, 2024

Draft decision of June 20, 2024 pursuant to Article 60.3 of the GDPR

In its capacity as the lead authority, the Contentious Chamber, an organ of the Data Protection Authority (DPA), has prepared this draft decision which it communicated on June 20, 2024, to the CNIL, the supervisory authority to which the complaint was submitted, pursuant to Article 60.3 of the GDPR. This draft proposes to dismiss the present complaint pursuant to Article 100.1, 1° of the LCA, which corresponds to the rejection of the complaint in the terminology of the GDPR. In execution of Article 60.8 of the GDPR, the CNIL confirmed this rejection decision and adopted a final decision on this basis on August 7, 2024.

File number: DOS 2022-01749

Subject: Complaint following the publication of salaries on the website Cumuleo.be

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Romain Robert and Yves Pouillet;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Having regard to the Law of December 3, 2017, establishing the DPA (hereinafter LCA);

Having regard to the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter "LTD");

Having regard to the internal rules as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Having regard to the documents in the file;

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Adopts the following draft decision pursuant to Article 60.3 of the GDPR concerning:

The complainant:

X, hereinafter referred to as "the complainant".

The defendant:

Y, publisher of the website Cumuleo.be, represented by Me Audrey Adam and Me Jacques Englebert, whose office is located at Rempart de la Vierge 2/7, 5000 Namur, Belgium, hereinafter referred to as "the defendant".

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I. Facts and Procedure

I.1.

The Facts

1.

On October 28, 2021, the complainant filed a complaint with the National Commission for Information Technology and Liberties (hereinafter "CNIL") against the defendant.

2.

The complaint filed by the complainant denounces the publication of the remuneration of her private professional activity on the defendant's website.

3.

For the proper understanding of this draft decision, the Contentious Chamber specifies that the law of May 2, 1995, imposes on a series of public officials and high-ranking civil servants the obligation to submit an annual declaration to the Court of Auditors of all their mandates, functions, or professions exercised during the previous year, as well as a declaration of assets where applicable. This obligation to declare mandates and remuneration applies to individuals who have held one of the mandates within an administration, a public institution, or an organization linked to public authorities listed in Article 1 of this law (hereinafter "mandate subject to declaration"). Individuals who have held one of the

mandates subject to declaration are also required to declare all other mandates or functions they have exercised in the same year, regardless of whether they are remunerated or not, whether they fall within the public or private sector, and whether they were exercised in Belgium or abroad. The law of October 14, 2018, amended the law of May 2, 1995, to extend its scope to public administrators and incorporate the obligation to declare remuneration. The declaration must therefore indicate the designation of each activity, the name of the institution or organization, the related remuneration, and the start and end dates of the mandate. Regarding the obligation to declare remuneration, the law provides a distinction between mandates subject to declaration, for which the gross annual remuneration must be declared, and other mandates, functions, or professions, for which an estimate of the remuneration is only required, within ranges set by the law. These lists of mandates and declarations of assets are then published in the Belgian Official Gazette.

1 Law of May 2, 1995, relating to the obligation to submit a list of mandates, functions, and professions and a declaration of assets, Belgian Official Gazette of July 26, 1995, available at: <http://www.ejustice.just.fgov.be/eli/loi/1995/05/02/1995021222/justel> (hereinafter "Law of May 2, 1995").

2 Art. 2, § 1, of the Law of May 2, 1995.

3 Law of October 14, 2018, amending the legislation relating to declarations of mandates and assets concerning the transparency of remuneration, the extension to public administrators, electronic submission, and control, Belgian Official Gazette of October 26, 2018, available at: <https://www.ejustice.just.fgov.be/cgi/loi/changeIlg.pl?language=fr&la=F&table;name=loi&cn;=2018101414> (hereinafter "Law of October 14, 2018"). This law, which notably introduces transparency of remuneration, was adopted following recommendation iii of GRECO in the context of Belgium's 4th evaluation cycle.

4 Art. 2, b), Law of October 14, 2018: "members, who receive directly or indirectly remuneration for this purpose, of boards of directors, advisory boards, and management committees: (...) b) of legal entities over which one or more public authorities exercise directly or indirectly a dominant influence."

5 Art. 3, Law of October 14, 2018.

6 "1.4 - What must you declare?", Vade-mecum of the Court of Auditors regarding the submission of lists of mandates and declarations of assets, version 6 of June 15, 2023, available at: <https://www.ccrek.be/sites/default/files/PDF/VademecumAssujetti.pdf>.

7 See Art. 2, § 1, of the Law of May 2, 1995, where the legislator specifies the different ranges.

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Belgian⁸ as well as on the website of the Court of Auditors⁹ in accordance with Article 7, § 3, of the special and ordinary law of June 26, 2004¹⁰.

4. During the period of the disputed processing, the complainant held two mandates that subject her to the declaration obligation provided for by the aforementioned law of May 2, 1995¹¹. In accordance with this legal obligation, the complainant was required to communicate to the Court of Auditors the list of her subject mandates as well as all her other activities, mentioning each time the remuneration received in the form of an order of magnitude or the precise amount as applicable¹². During this period, the complainant's declarations were therefore published and are publicly available to this day in the Belgian Official Gazette¹³ and on the website of the Court of Auditors¹⁴.

5. The website Cumuleo.be, for which the defendant is the data controller, has as its main theme the accumulation of mandates in Belgium (hereinafter "Cumuleo" or "the defendant's website"). This site provides visitors with free access to information related to mandates, functions, or professions exercised notably by the mandataries subject to the law of May 2, 1995. The defendant updates the database of his site based on, among other things, the published mandate declarations in accordance with this law, in the Belgian Official Gazette or on the website of the Court of Auditors. The content of the site is therefore essentially a reproduction of information derived from these public and official sources. However, the defendant also performs a verification and correction of any errors or omissions¹⁵. Public mandataries also have the option to publish or complete the information present on Cumuleo themselves.

6. A search on the Cumuleo site using the complainant's name provides access to a record of the various mandates, functions, and professions she has exercised during the same calendar year from 2018 to the present. Each of these activities is accompanied by the remuneration received in the same form as that indicated in the complainant's declarations published in the Belgian Official Gazette or on the website of the Court of Auditors¹⁶.

8 Since 2023, the list of these declarations is only published on the website of the Court of Auditors.

9 "Lists of mandates and declarations of assets," website of the Court of Auditors, available at:

<https://www.ccrek.be/fr/listes-de-mandats-et-declarations-de-patrimoine>.

10 Special law of June 26, 2004, executing and completing the special law of May 2, 1995, relating to the obligation to submit a list of mandates, functions, and professions and a declaration of assets, Belgian Official Gazette of June 30, 2004, available at:

<https://www.ejustice.just.fgov.be/eli/loi/2004/06/26/2004021083/justel>. It should be noted that this executing law was not amended during the 2018 revision of the law it executes.

11 Law of May 2, 1995, op. cit., Belgian Official Gazette of July 26, 1995.

12 See, supra, footnote no. 7.

13 See, for example, the declarations relating to the mandates exercised by the complainant in 2018, "Final list of mandates, functions, and professions exercised during all or part of the year 2018,"

Belgian Official Gazette of February 14, 2020, First Edition, p. (...), available at (...).

14 See, for example, the declarations relating to the mandates exercised by the complainant in 2019, "Lists of mandates and declarations of assets," website of the Court of Auditors, available at: (...).

15 This was the case regarding the complainant's record, the defendant modified the description of the position held (point 3 of the defendant's conclusions of September 19, 2022).

16 See, supra, footnotes no. 12 and 13.

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7.

On September 28, 2021, the complainant contacted the defendant to request, based on Article 17 of the GDPR, the deletion of her personal data regarding her remuneration for her professional activity at Z on Cumuleo. The complainant indicates that the data in question relates to a private employment activity and that, according to her, there is no compelling legitimate reason justifying the continued processing of her data. She has therefore also expressed her opposition to the processing of said data for reasons related to her particular situation, without specifying which ones. Subsequently, the complainant broadened her deletion request to cover all remunerations as an employee in the private sector between 2018 and 2020 (hereinafter referred to as "the disputed information" or "private remunerations").

8.

On October 18, 2021, the defendant refused to comply with the complainant's request for deletion and opposition on the grounds, among others, that the publication of this information on its site contributes to the transparency essential for the proper functioning of democracy regarding the allocation of certain mandates, positions, and professions. The defendant argued that the information processed on its site comes from public and official sources since the complainant is subject to the obligation to declare her mandates and remunerations under the law of May 2, 1995. The defendant explains that the deletion from its site of the disputed information, which the Belgian legislator explicitly intended to ensure transparency to the general public, would contradict its fundamental right to freedom of expression and information.

I.2. The European Cooperation Procedure with the CNIL

9.

This complaint was subject to a procedure for identifying the lead authority pursuant to Article 56 of the GDPR. In a session on June 13, 2022, the Litigation Chamber recognized the APD as the lead supervisory authority within the meaning of Article 56.1 of the GDPR, while the CNIL declared itself a "concerned supervisory authority" within the meaning of Article 4.22, b) and c) of the GDPR.

10.

The GDPR contains a special regulation for the processing of complaints related to cross-border

processing. The lead supervisory authority is the one that will pursue the substantive processing of the case. In this context, it regularly informs the concerned supervisory authorities of the status of the case and — in accordance with the cooperation mechanism established in Article 60 of the GDPR — also involves them in making a final decision. The cases to which the aforementioned European cooperation mechanism applies

17 See email dated September 28, 2021, sent by the complainant to the defendant in which the exercise of the right of opposition is succinctly formulated in the following terms: "I thus oppose the processing of her personal data under Article 21, paragraph 1 of the General Data Protection Regulation, for reasons related to my particular situation."

18 Notably in the complainant's letter to the Litigation Chamber dated October 10, 2022.

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are often complex, for the following reasons: several national supervisory authorities are involved in the matter, and each is subject to its own national procedural rules (which concern, for example, the role of the complainant in a supervisory and sanctioning procedure in case of non-compliance with the regulations, or regarding the use of languages).

11.

As the lead authority, the Litigation Chamber, a body of the DPA, has prepared a draft decision based on the arguments of the parties involved and had to submit it to the CNIL, the concerned authority, in order to obtain its opinion (Article 60.3 of the GDPR). The CNIL has the competence to examine the draft submitted to it by the DPA. The CNIL may raise a relevant and reasoned objection within the meaning of Article 60.4 of the GDPR.

12.

On June 20, 2024, the Litigation Chamber submits, in accordance with Article 60.3 of the GDPR, its draft decision to the concerned supervisory authority, the CNIL, in order to obtain its opinion.

I.3. The invitation to conclude addressed to the parties

13.

On June 13, 2022, the Litigation Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be addressed on the merits.

14.

On July 20, 2022, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response was set for September 19, 2022, the deadline for the complainant's reply was set for October 10, 2022, and the deadline for the defendant's rejoinder was set for October 31, 2022.

15.

On July 20, 2022, the complainant agrees to receive all communications related to the case electronically and expresses her intention to exercise the right to be heard, in accordance with Article 98 of the LCA.

16.

On July 25, 2022, the defendant agrees to receive all communications related to the case electronically and expresses his intention to exercise the right to be heard, in accordance with Article 98 of the LCA.

17.

On September 19, 2022, the Litigation Chamber receives the defendant's response. In summary, he defends the following:

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It should be considered that the defendant processes the complainant's personal data for journalistic purposes within the meaning of Article 24 of the LTD.

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Consequently, the disputed processing benefits from the exception for journalistic activities, and the complainant cannot oppose it by exercising her right under Article 21.1 of the GDPR.

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The right to erasure does not apply pursuant to Article 17.3.a) of the GDPR because the disputed processing is necessary for the exercise of the right to freedom of expression and the right to information of the public. The dissemination of her remuneration for her "private" professional activities is necessary for the right of citizens to be informed, allowing them to be aware of all types of activities carried out by public representatives.

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The DPA's decision cannot constitute a violation of the defendant's right to freedom of expression. The interference sought by the complainant is not necessary in a democratic society to achieve the legitimate aim concerning the specific principles related to the provision of official information to the public. The harm claimed by the complainant could not justify the severity of the interference with freedom of expression and would constitute a violation of the principle of proportionality.

18.

On September 20, 2022, the complainant requests a copy of the file (Art. 95, §2, 3° LCA), which is transmitted to her on September 30, 2022.

19.

On October 10, 2022, the Litigation Chamber receives a reply letter from the complainant. In summary, the complainant defends the following:

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The publication on the defendant's website of her remuneration as an employee in the private sector between 2018 and 2020 does not contribute to a fair and proportionate balance between the citizens' right to information and her right to the protection of her personal data.

20. On the same date, the complainant requests that the decision in this case not be published or at least be anonymized. On October 21, 2022, the Litigation Chamber emphasizes the importance of transparency regarding the decision-making process of the Litigation Chamber, and that its decisions are always published on the website of the Data Protection Authority. It also explains to the complainant that it will take note of her request for anonymization, which it will address in the decision itself.

21.

On October 31, 2022, the defendant informs the Litigation Chamber that the complainant's letter does not require any response from him. The defendant states that the conclusions communicated to the Litigation Chamber on September 19 remain unchanged.

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II. Motivation

II.1. Regarding the territorial jurisdiction of the Contentious Chamber

22.

In light of Article 77 of the GDPR, the complainant – residing in France – has the right to lodge a complaint with the supervisory authority of her choice, even if this authority is located in a Member State where the complainant does not have her habitual residence or place of work.

23.

By application of Article 56.1 of the GDPR, the Data Protection Authority (DPA) is competent to act as the lead authority regarding cross-border data processing carried out by the data controller(s) whose main establishment or sole establishment is located on its territory. In this case, the territorial jurisdiction of the DPA, and thus of the Contentious Chamber, is not in dispute as the defendant, responsible for the processing of the Cumuleo website, has its sole establishment in Belgium.

II.2. Regarding the merits of the request for erasure following the exercise of the right to object

24.

In view of the content of the complaint, it is for the Contentious Chamber to assess whether the defendant rightly refused to respond favorably to the request for erasure following the exercise of a right to object concerning the disputed content currently available on the defendant's website.

25.

The Contentious Chamber recalls that under Article 17.1(c) of the GDPR, the data subject has the right to obtain from the data controller the erasure, without undue delay, of personal data concerning him or

her when (...) c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21.2 of the GDPR. The data controller is obliged to erase such personal data without undue delay when this ground applies.

26.

However, the right to the protection of personal data is not an absolute right; it must be considered in relation to its function in society and balanced against other fundamental rights. In this regard, publications on the Internet indeed fall under content protected by the right to freedom of expression and information (Article 10 of the

19 Article 17 of the GDPR is not among the rights of the data subject that the Belgian legislator purely and simply excludes from exercise in the case of processing for journalistic purposes under Article 24.2 of the Law on Data Protection, see points 52 to 56 of this decision.

20 Recital 4 of the GDPR.

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European Convention on Human Rights (ECHR) and Article 11 of the Charter of Fundamental Rights of the EU.

27.

Article 17.3. a) of the GDPR provides that Article 17.1 does not apply insofar as the processing is necessary for the exercise of the right to freedom of expression and information, thereby establishing, in the very terms of Article 17 of the GDPR, an exception regime that involves a balancing of interests between the fundamental right to freedom of expression and information on the one hand and the fundamental right to the protection of personal data on the other. In its judgment "Google Spain" of May 13, 2014, the CJEU states that, as a general rule, the rights of the data subject enshrined in Articles 7 and 8 of the Charter of Fundamental Rights of the European Union (namely, the right to privacy and the protection of personal data) prevail. Nevertheless, "this balance may, however, depend, in particular cases, on the nature of the information in question and its sensitivity for the privacy of the data subject as well as the public interest in having access to that information, which may vary, in particular, depending on the role played by that person in public life."

28.

For its part, the European Court of Human Rights (hereinafter "ECHR") has also developed over the course of its case law a series of relevant criteria that must be taken into consideration in order to balance these competing fundamental rights, namely the contribution to a public interest debate, the notoriety of the person concerned, the subject matter of the reporting, the prior behavior of the data subject, the content, form, and repercussions of the publication, the manner and circumstances in which the information was obtained, as well as its veracity. In its recent judgment "Buivids," the CJEU directly referred to these criteria established by the ECHR.

29.

Furthermore, the ECHR has consistently emphasized in its case law the indispensable role of the press and other "public watchdogs" in a rule of law state. Indeed, as the Court frequently reminds, the primary function of the press is to serve as a vehicle for the dissemination of public interest debates, but it also fulfills a secondary role, that of revealing and bringing to the public's attention information likely to generate interest and foster such debate within society. Consequently, the ECHR warns that the utmost caution should be exercised.

21 ECHR, March 10, 2009, *Times Newspaper Limited v. United Kingdom*.

22 The Contentious Chamber emphasizes.

23 CJEU, May 13, 2014, C-131/12, *Google Spain and Google*, ECLI:EU:C:2014:317, paragraph 81.

24 See ECHR, June 27, 2017, *Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland*, paragraph 165; ECHR, November 10, 2015, *Couderc and Hachette Filipacchi Associés v. France* (GC), paragraph 93; ECHR, February 7, 2012, *Von Hannover v. Germany* (no. 2) (GC), paragraphs 109 to 113; ECHR, February 7, 2012, *Axel Springer AG v. Germany* (GC), paragraphs 90 to 95.

25 CJEU, February 14, 2019, C-345/17, *Buivids*, ECLI:EU:C:2019:122, paragraphs 65 to 66.

26 See notably, ECHR, April 23, 1992, *Castells v. Spain*, paragraph 43.

27 See ECHR, November 10, 2015, *Couderc and Hachette Filipacchi Associés v. France* (GC), paragraphs 89 and 114.

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when it comes to examining restrictions likely to dissuade citizens from participating in the discussion of issues of legitimate general interest²⁸. Therefore, any measure that would limit public access to this information – which has the right to receive it – must be justified by particularly compelling reasons²⁹.

30. If in the case law of the European Court of Human Rights, the role of "public watchdogs" is generally assumed by the press and professional journalists³⁰, the Court is progressively recognizing this function for individuals³¹. The said Court considers that the role of these actors can be similar in importance to that of the press³² and that they can therefore benefit from the high level of protection usually granted to it³³. The Court particularly considers that:

"Given that websites greatly contribute to improving public access to news and, more generally, to facilitating the dissemination of information³⁴, the function of bloggers and popular social media users can also be likened to that of a 'public watchdog' concerning the protection offered by Article 10"³⁵.
31.

Similarly, the CJEU gives a broad interpretation to concepts related to freedom of expression, such as journalism³⁶. In its judgment "*Buivids*" of February 14, 2019, the CJEU does not impose any requirement regarding the professional quality of the person or organization invoking the benefit of the journalistic exception: the video recording of police officers in a police station and the publication of these images on a website were considered as processing of personal data carried out for journalistic purposes. In this judgment, the Court takes into account the "evolution and multiplication of means of communication and dissemination of information"³⁷. Likewise, in the judgment "*Satamedia*," the CJEU held that the purpose of journalistic processing included "the disclosure to the public of information, opinions, or ideas, by any means of transmission whatsoever"³⁸, and that such a purpose could be pursued by "any person"³⁹, without imposing requirements regarding the quality of a journalist or the absence of a

28 See European Court of Human Rights, May 20, 1999, *Bladet Tromsø and Stensaas v. Norway* (GC), paragraph 64.

29 European Court of Human Rights, March 10, 2009, *Times Newspaper Limited v. United Kingdom*, paragraph 41; European Court of Human Rights, November 27, 2007, *Timpul Info-Magazin and Anghel v. Moldova*, paragraph 31.

30 European Court of Human Rights, December 17, 2004, *Pedersen and Baadsgaard v. Denmark* (GC), paragraph 71.

31 European Court of Human Rights, June 20, 2018, *Falzon v. Malta*, paragraph 57.

32 European Court of Human Rights, April 22, 2013, *Animal Defenders International v. United Kingdom* (GC), paragraphs 102-103; European Court of Human Rights, December 1, 2009, *Karsai v. Hungary*, paragraph 35; European Court of Human Rights, November 8, 2016, *Magyar Helsinki Bizottság v. Hungary* (GC), paragraphs 159, 165 to 168; European Court of Human Rights, July 8, 1999, *Başkaya and Okçuoğlu v. Turkey* (GC), paragraphs 61 to 67; European Court of Human Rights, October 22, 2007, *Lindon, Otchakovsky-Laurens and July v. France* (GC), paragraph 48; European Court of Human Rights, June 27, 2017, *Medzelis islamske zajednice brcko and others v. Bosnia and Herzegovina*, paragraph 86.

33 European Court of Human Rights, December 1, 2009, *Karsai v. Hungary*, paragraph 35.

34 European Court of Human Rights, June 16, 2015, *Delfi AS v. Estonia* (GC), paragraph 133.

35 European Court of Human Rights, November 8, 2016, *Magyar Helsinki Bizottság v. Hungary* (GC), paragraph 168; European Court of Human Rights, June 20, 2018, *Falzon v. Malta*, paragraph 57; European Court of Human Rights, July 26, 2020, *Centre for Democracy and the Rule of Law v. Ukraine*, paragraph 87.

36 See also Recital 153 of the GDPR.

37 CJEU, February 14, 2019, C-345/17, *Buivids*, ECLI:EU:C:2019:122, paragraph 56.

38 CJEU, December 16, 2008, C-73/07, *Satakunnan Markkinapörssi and Satamedia* (Satamedia),

ECLI:EU:C:2008:727, paragraph 61.

39 Ibid, paragraph 58.

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profit-making. Beyond the quality of the data controller, the CJEU retains the criterion that the processing must have as its "sole purpose the disclosure to the public of information, opinions, or ideas"⁴⁰. In other words, the objective of the publication must be that of a journalist inspired by the public interest, and the presence of other elements motivating the publication will be decisive.

32.

An analysis of the case law of the CJEU and the European Court of Human Rights reveals that the exercise of a journalistic activity, and the protection that derives from it, should not be exclusively reserved for professional journalists. However, this same analysis also reveals that any person who engages in journalistic activity and intends to benefit from the high level of protection granted to press freedom is required to respect, at a minimum, the most obvious ethical rules⁴¹.

33. In this sense, the Council of Journalistic Ethics (hereinafter "CJE") also considers that the rules of journalistic ethics are intended to apply to non-professional journalists. Indeed, the Francophone and Germanophone Code of Journalistic Ethics defines the notion of journalist as "any person who directly contributes to the collection, editorial processing, production, and/or dissemination of information, through a medium, intended for an audience and in the interest of that audience"⁴². The CJE therefore considers that "the ethical obligation arises from the exercise of an activity that has an impact on society" and not from the fact of "being a professional journalist"⁴³. The same applies to the Raad voor de Journalistiek, which has already ruled several times on the respect for journalistic ethical rules by non-professional journalists⁴⁴.

34. In this case, based on the relevant criteria to be considered according to the aforementioned case law of the CJEU and the European Court of Human Rights, and in support of all the elements presented to it, the Contentious Chamber argues that in the present case, the outcome of the balancing of interests to be carried out, pursuant to Article 17.3.a) of the GDPR, between the right to data protection, on the one hand, and the right to freedom of expression and information, on the other hand, tilts in favor of freedom of expression and information. The Contentious Chamber indeed considers that the publication on the defendant's website of the complainant's remuneration as an employee

⁴⁰ CJEU, February 14, 2019, C-345/17, Buivids, ECLI:EU:C:2019:122, paragraph 59; CJEU, December 16, 2008, C-73/07, Satakunnan Markkinapörssi and Satamedia (Satamedia), ECLI:EU:C:2008:727, paragraph 62.

⁴¹ European Court of Human Rights, December 1, 2009, Karsai v. Hungary; European Court of Human Rights, November 8, 2016, Magyar Helsinki Bizottsag v. Hungary (GC); European Court of Human Rights, June 27, 2017, Medzelis islamske zajednice brcko and others v. Bosnia and Herzegovina.

⁴² Council of Journalistic Ethics, Code of Ethics 2013, 3rd ed., The CJE Notebooks No. 5, Part II, "Definitions," p. 11.

⁴³ "Definition & Scope of Action of the CJE," website of the Council of Journalistic Ethics, available at: <https://www.lecdj.be/fr/deontologie/definition-champ-daction-du-cdj/> (accessed March 25, 2024).

⁴⁴ See in particular the following decisions of the Raad voor de Journalistiek: HRM Focus and HRMBlogs and Ernst; Bashar v. Belemturktv.com; Engelbosch v. Trudocs.be; Vleugels v. Heistonline. Draft Decision of June 20, 2024, pursuant to Article 60.3 of the GDPR – 12/22

in the private sector, as already intended by the legislator, is necessary for the exercise of the right to freedom of expression and information.

35. Firstly, the Contentious Chamber takes into account the fact that the disputed processing essentially consists of the transcription on Cumuleo of the declarations of mandates and remuneration of the complainant, which are publicly available. Indeed, the complainant has held two mandates subject to the obligation to declare her mandates and remuneration as provided by the law of May 2, 1995, so that her remuneration has been published in the Belgian Official Gazette as well as on the website of the Court of Auditors under this legal obligation (points 3 to 4). In examining the purpose

and proportionality of the disputed processing, the Contentious Chamber considers that the remuneration of the complainant, which the defendant has relayed on his site, was initially disseminated publicly under this legal obligation, as the legislator deemed it necessary in the interest of transparency in public management. In the draft law of November 29, 2017, which led to the aforementioned law of October 14, 2018, the legislator explains the objective of transparency pursued by these laws:

“Allow all citizens to be informed about public and private mandates as well as the professional activities of public representatives. Given the revelations that have marked political life at both the federal and regional levels, it is essential to strengthen measures aimed at improving the transparency of Belgian political life”⁴⁵ (The Contentious Chamber emphasizes).

36. The Contentious Chamber notes that the complainant is subject to this declaration obligation, as she has held, and still holds, two high executive positions in a company predominantly owned by the Belgian and French states. However, the law of October 14, 2018, intended the declaration obligation for so-called “public” directors⁴⁶ who hold certain positions in companies on which one or more public authorities exert a dominant influence:

“This declaration will increase transparency in the interest of good governance. The public authority holds a stake in several companies and organizations. These serve as examples and need a modern governance framework in which the public authority shows restraint regarding operational matters and human resources. This means that their directors should have more responsibilities, that any

45 Draft Law of November 29, 2017, amending the legislation regarding declarations of mandates and assets concerning the transparency of remuneration, its extension to public directors, electronic filing, and the monitoring of compliance, DOC 54 2810/001, Developments, p. 3, available at <https://www.dekamer.be/FLWB/pdf/54/2810/54K2810001.pdf>.

46 Article 2, b), of the Law of May 2, 1995: “members, who receive directly or indirectly a remuneration for this purpose, of boards of directors, advisory boards, and management committees: (...) b) of legal entities on which one or more public authorities exert a dominant influence directly or indirectly.”

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to avoid any conflict of interest and that their remuneration corresponds to work actually performed”⁴⁷ (The Contentious Chamber emphasizes).

37.

While the Contentious Chamber will not, in the case submitted to it, challenge the proportionality of the publication of the private remuneration of public representatives as provided for in the law, it nevertheless regrets the lack of clarity in the laws organizing this publication. In particular, there is confusion in these texts regarding the obligation to publish all information (declarations of mandates AND the remuneration communicated) on the website of the Court of Auditors.

38. However, the Contentious Chamber wishes to remind, as it has done in the past⁴⁸, that the fact that the disputed information is publicly available on the internet does not strip it of its status as personal data, and its processing is in principle subject to all the rules of the GDPR, including the conditions of lawfulness and proportionality of the processing. Thus, any data processing requires an adequate legal basis, for example, the legitimate interest of the data controller (Article 6.1.f of the GDPR). The Contentious Chamber argues that a journalistic approach may be based on the legitimate interest of the data controller in the context of its fundamental right to freedom of expression, or its legitimate interest in exercising a digital right of reply.

39. The CJEU has repeatedly clarified the criteria for balancing the right to data protection with the right to freedom of expression in the context of the reuse of public data⁴⁹. For example, in the judgment *Österreichischer Rundfunk*⁵⁰, the CJEU specified that the rules for the protection of personal data⁵¹ apply to public data (salary data of employees of a semi-public company): the processing of this personal data for purposes other than those for which it was initially collected (in this case, for budgetary transparency) is subject to compliance with the principle of purpose and compatibility of any subsequent data processing, except for legally framed exceptions.

40. That said, the defendant asserts that the purpose of publishing the complainant's remuneration is the same as that intended by the legislator through the laws governing the obligation to declare and

publish mandates and remuneration (points 37 and 38). The

47 Proposal for a Law of November 29, 2017, amending the legislation relating to declarations of mandates and assets regarding the transparency of remuneration, its extension to public administrators, electronic filing, and the monitoring of its compliance, DOC 54 2810/001, Developments, p. 3, available at <https://www.dekamer.be/FLWB/pdf/54/2810/54K2810001.pdf>.

48 Contentious Chamber, Decision on the merits 13/2022 of January 27, 2022, available at <https://www.autoriteprotectiondonnees.be/publications/decision-quant-au-fond-n-13-2022.pdf>

49 C. DOCKSEY, "Four fundamental rights", International Data Privacy Law, 2016, vol. 6, no. 3.

50 CJEU, May 20, 2003, C-465/00, C-138/01 and C-139/01, Österreichischer Rundfunk e.a., ECLI:EU:C:2003:294.

51 At the time of this judgment, the Charter had not yet become binding, so the CJEU relied on Article 8 of the ECHR as well as on Directive 95/46/EC of the European Parliament and of the Council, of October 24, 1995, on the protection of individuals with regard to the processing of personal data and on the free movement of such data.

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the publication of the disputed information does not pursue any purposes other than those for which it was initially collected under the legal obligation to which the complainant is subject, namely, for the purposes of transparency in public management.

The defendant describes the objective of the Cumuleo site as follows:

"Cumuleo publishes rigorous and public interest data on the mandates, functions, and professions of public representatives and senior officials.

Having an independent and persistent source of documentary information allows citizens, journalists, politicians, etc., to refer to it at any time to define, inform, or refine their reflections on the broadly understood theme of the accumulation of mandates.

More than opinions, Cumuleo publishes factual truths to allow the visitor the freedom to define their own opinion and the autonomy of their decision-making (...)

The objective of Cumuleo is to be a player in transparency and the promotion of integrity in the management of society.

Cumuleo truly believes in transparency. It is the barometer of democracy.

The more transparent the management of society is, the stronger democracy becomes, and the more society develops.

The publication of the mandates, functions, and professions of political representatives and senior officials, which Cumuleo is currently focusing on, is a step in the execution of this mission. In this specific case, transparency helps combat conflicts of interest, the diversion of public resources for private purposes, and corruption"⁵² (The Contentious Chamber emphasizes).

41.

The Contentious Chamber notes that the request for erasure is not directed against an established press outlet, but rather against a citizen website managed by the defendant, who is not a professional journalist⁵³. However, the Contentious Chamber considers that the disputed processing was indeed carried out for journalistic purposes in the sense of the aforementioned case law of the CJEU and the European Court of Human Rights (points 31 to 35). Indeed, the Contentious Chamber considers that the defendant has made the complainant's remuneration available for free on their site to inform the public and draw attention to the aforementioned public interest issue. The Contentious Chamber does not identify any other elements motivating the publication of the disputed information, and it therefore follows that the sole purpose of this processing is to inform the public about these matters of public interest.

52

"Objective,

Vision

and

Values

of the

Cumuleo project,”
defendant's website,
available at:

<https://www.cumuleo.be/objectif-vision-valeurs.php> (accessed March 30, 2024).

53 The defendant himself acknowledges that he is not a professional journalist in point 13 of his conclusions of September 19, 2022.

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public. Furthermore, the Contentious Chamber notes that the defendant has adhered to certain essential rules of journalistic ethics by verifying and, where appropriate, correcting the information he relays from official and public sources (point 5).

42. The Contentious Chamber also takes into account the contribution of the disputed publication to the public interest debate and to the achievement of legal objectives regarding transparency in public management. The Contentious Chamber considers the important role, comparable to that of the press, played by the defendant in this public debate, as Cumuleo makes information related to this debate more readable and more easily accessible to the general public than official publications. In this regard, the Council of Europe has notably recognized the significant contribution of the defendant's citizen initiative to the prevention of corruption among parliamentarians, judges, and prosecutors in an evaluation report on Belgium:

“Regarding the declarations of mandates and paid positions of parliamentarians, while the publicity of the information is commendable, the accessibility of this information remains quite difficult (...).

Currently, the EEG notes that it is at the initiative of a citizen that a non-official site – www.cumuleo.be – aims to make the information more easily accessible and comparable. It includes the historical situation of the representatives subject to the law, the public information communicated (mandates, positions, professions). The site also lists the representatives in default (parliamentarians and other positions subject to the duty of declaration)”⁵⁴ (The Contentious Chamber emphasizes).

43. The Contentious Chamber notes that the complainant does not understand how the publication of her remuneration as an employee in the "private" sector contributes to the transparency surrounding the allocation of mandates in the public sector (point 20). However, the Contentious Chamber believes that the exercise of the right to erasure concerns the processing of information that contributes to this public interest debate and therefore presents an interest for the public. The public's interest in having access to this information is all the more significant in this case, as the complainant, as a personality subject to the aforementioned declaration obligation, plays a role in Belgian public life and is a public figure within the meaning of the Guidelines of the Article 29 Working Party⁵⁵ (point 38). Furthermore, the Contentious Chamber observes that the transparency objective of public management sought by the defendant and, a fortiori, by the legislator when adopting the aforementioned laws,

54 “Prevention of corruption among parliamentarians, judges, and prosecutors,” Evaluation Report Belgium, adopted by GRECO during its 63rd Plenary Meeting, March 24-28, 2014, p. 20, available at <https://rm.coe.int/CoERMPublicCommonSearchServices/DisplayDCTMContent?documentId=09000016806c2c3e>.

55 Article 29 Working Party, Guidelines on the implementation of the judgment of the Court of Justice of the European Union in the case of Google Spain and Inc./Agencia española de protección de datos (AEPD) and Mario Costeja González (C-131/12, adopted on November 26, 2014, p. 15: “political men and women, senior officials, business men and women, and members of regulated liberal professions can generally be considered as playing a role in public life.”

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requires that all types of remuneration, whether public or private, be accessible to the public. The Contentious Chamber takes into account that only the ranges of the complainant's private remuneration are published on Cumuleo (points 3 and 6). The public interest in having access to the disputed information is to highlight, in particular, a potential conflict of interest (point 38). While it is true that the publication of the functions performed would already expose, to some extent, a conflict of interest, the Contentious Chamber is of the opinion that, in this context, the publication of the ranges of other remuneration received by a public administrator such as the complainant is not disproportionate.

This is because it allows the public to form a more complete view of potential conflicts of interest and to make relevant comparisons between private and public income. The legislator has also deemed that the publication of remuneration serves to hold public administrators accountable (naming and shaming) and constitutes an indicator of good governance of parapublic structures (point 38).

44. Furthermore, the Contentious Chamber also takes into account that the disputed information is not particularly sensitive and its dissemination by the defendant does not lead to significant repercussions, particularly since this information is already publicly available and has, in fact, been actively communicated by the complainant herself to fulfill her obligations; she could therefore not ignore that this information was intended to be published by the Court of Auditors. The Contentious Chamber is aware that publication on Cumuleo may create additional risks compared to official publication, as the scope of this publication and the accessibility of the disputed information are amplified. However, for the reasons already stated, the Contentious Chamber believes that in this case, the risks are limited and do not justify a restriction on the legitimate rights of third parties to access this public interest information. Given that the information relayed by the defendant on his site comes from official sources and that the complainant herself is the source of this information, the Contentious Chamber takes into account that the accuracy of the disputed information is not in question. Finally, the Contentious Chamber notes that the disputed information is recent and therefore still relevant, as it refers to the professional activities carried out by the complainant since 2018.

45. For the reasons stated above, the Contentious Chamber considers that the defendant's website, by relaying and grouping the disputed information in a way that makes it more accessible to the public than official sources, contributes to a public interest debate on the issue of transparency in public management and the fight against conflicts of interest and corruption. The Contentious Chamber takes into account the elements of the case and considers that a restriction likely to deter participation in this debate

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of general interest and which would limit public access to the disputed information is not justified in this case. Therefore, regarding the balance of interests at hand, the Contentious Chamber considers that the publication on the defendant's website of the complainant's remuneration as an employee in the private sector is necessary for the exercise of the right to freedom of expression and information pursuant to Article 17.3.a) of the GDPR.

46. Consequently, the Contentious Chamber is of the opinion that the defendant rightly refused and continues to refuse to comply with the complainant's request for the deletion of the disputed information.

II.3. Additional Considerations

47. The Contentious Chamber is aware that the defendant, in support of its refusal to respond to the exercise of the complainant's right to object, invoked Article 24.2 of the LTD implemented pursuant to Article 85.2 of the GDPR. The defendant indeed considers that the disputed processing benefits from the exception for processing for journalistic purposes provided by this provision of Belgian law and therefore does not need to justify any "overriding legitimate interest" to maintain the disputed processing carried out on the basis of Article 6.1.f) of the GDPR.

48. Article 85 of the GDPR precisely offers Member States the possibility to reconcile, through their national law, different fundamental rights such as the right to the protection of personal data, on the one hand, and the right to freedom of expression and information, on the other hand. Member States are free to provide for a specific regime in their national law applicable to the processing of personal data for journalistic purposes or freedom of expression, in the form of exemptions or derogations from certain rules of the GDPR. For example, data controllers for journalistic purposes may be exempted from their obligation to provide prior information to the data subjects (Chapter III of the GDPR).

49. Under Belgian law, Article 24 of the LTD was implemented pursuant to Article 85 of the GDPR. This provision defines in its first paragraph the notion of processing carried out for journalistic purposes in the following terms:

"Processing of personal data for journalistic purposes means the preparation, collection, writing, production, dissemination, or archiving for the purpose of informing the public, using any media, and

where the data controller is subject to the rules of journalistic ethics" (The Contentious Chamber emphasizes).

50. This provision of Belgian law conditions the invocation of the journalistic exception on the consideration of ethical rules and would therefore, in principle, fall within a context of professional journalism. It proposes a definition of journalistic purpose that is certainly more restrictive than that envisaged by the GDPR and the case law of the CJEU and the European Court of Human Rights (points 31 to 35).

51. The Contentious Chamber recalls that Article 24.2 of the LTD provides that in the case of processing for journalistic purposes, Articles 7 to 10, 11.2, 13 to 16, 18 to 20, and 21.1 of the GDPR do not apply. However, Article 85.2 of the GDPR stipulates that such derogations or exemptions are only possible to the extent that they are "necessary" to reconcile the right to the protection of personal data and the freedom of expression and information.

52. In this context, the CJEU stated in the aforementioned "Buivids" judgment:

"It should be noted that the exemptions and derogations provided for in Article 9 of Directive 95/46 (mutatis mutandis similar to Article 85.2 of the GDPR) must be applied only to the extent that they are necessary to reconcile two fundamental rights, namely the right to respect for private life and the right to freedom of expression" (The Contentious Chamber emphasizes).

53. Following this CJEU ruling, a Belgian legislative proposal aimed to amend Article 24 of the LTD. This legislative proposal intended, in particular, to insert a new paragraph specifying that the exemptions provided by Article 24 of the LTD must meet the necessity criterion. The Knowledge Center of the APD issued an opinion in this regard stating:

"The Authority shares, of course, the observation made by the developments of the legislative proposal that the automatic nature of the exemptions granted to the data controller who processes data for journalistic purposes is not compliant with Article 85 of the GDPR. It is indeed necessary to review Article 24 of the LTD to eliminate the automatic derogations and exemptions it contains. The legislator must ensure that the regulation grants, in compliance with the principle of foreseeability, only those derogations and exemptions that are actually necessary to achieve a fair balance between the right to data protection and freedom of expression."

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in
particular
when it
is
used
in
the
context
of
journalistic
activity"⁶⁰ (The Contentious Chamber emphasizes).

54. Therefore, in line with previous decisions⁶¹, the Contentious Chamber questions the compliance of the current Article 24 of the LTD with the GDPR. While this article provides for automatic exemptions, Article 85 of the GDPR and the case law of the CJEU require a balancing exercise between the two fundamental rights of freedom of information and expression and the right to data protection, which must be carried out in concreto. In this regard, the Contentious Chamber could, in support of the case law of the CJEU, decide to set aside Article 24 of the LTD if it deemed it non-compliant with the GDPR⁶². As the CJEU has ruled repeatedly, the duty to disapply national legislation that is contrary to Union law falls not only on national courts but also on all state bodies, including administrative authorities, tasked with applying Union law within their respective competencies⁶³.

55. Notwithstanding the above, the Contentious Chamber notes that Article 17 of the GDPR is not among the rights of the data subject that the Belgian legislator purely and simply excludes from exercise in the case of processing for journalistic purposes under the said Article 24.2 of the LTD. Thus, Article 17.1.c) of the GDPR invoked by the complainant, even if it follows from the exercise of a

right of opposition (Article 21.1 of the GDPR, which is indeed included in the list of excluded rights), would therefore fully apply, albeit within the limits of Article 17.3.a) of the GDPR. Since Article 17 of the GDPR is not mentioned in Article 24.2 of the LTD, it cannot be affected by the fact that Article 21.1 of the GDPR is, on the other hand, impacted.

56. However, the considerations above remain superfluous since, in this case, the Contentious Chamber concluded that, pursuant to Article 17.3.a) of the GDPR, the right to freedom of expression and information must prevail and that the defendant rightly refused (and continues to refuse) to comply favorably with the complainant's request for erasure.

60 Opinion of the Knowledge Centre of the APD, No. 38/2023 of February 9, 2023, point 25.

61 See in particular, Contentious Chamber, Decision on the merits 139/2021 of December 10, 2021; Contentious Chamber, Decision 45/2024 of March 7, 2024; Contentious Chamber, Decision 141/2022 of October 4, 2022.

62 In its guidelines, the European Data Protection Board (EDPB) emphasized the role of data protection authorities regarding legislations that do not comply with the provisions of the GDPR. In support of Article 58.5 of the GDPR, the EDPB recalled, referring to Recital 50 of the CJEU ruling in case C-378/17, that “according to the principle of supremacy of EU law, the duty to disapply national legislation that is contrary to EU law is owed not only by national courts but also by all organs of the State – including administrative authorities – called upon, within the exercise of their respective powers, to apply EU law” (EDPB, Guidelines 10/2020 on restrictions under Article 23 GDPR, adopted on October 13, 2021, point 73).

63 See in this regard, CJEU, December 4, 2018, C-378/17, ECLI:EU:C:2018:979, point 38, citing the judgments of June 22, 1989, 103/88, Costanzo, EU:C:1989:256, point 31; September 9, 2003, C-198/01, CIF, EU:C:2003:430, point 49; January 12, 2010, C-341/08, Petersen, EU:C:2010:4, point 80, and September 14, 2017, C-628/15, The Trustees of the BT Pension Scheme, EU:C:2017:687, point 54; CJEU, October 6, 2015, C-362/14, Schrems, ECLI:EU:C:2015:650.

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III. Regarding corrective measures and sanctions

57.

Under Article 100 LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint without further action;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the data subject to exercise these rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the public prosecutor's office of the King of Brussels, which informs it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

58. In terms of dismissal without further action (Article 100.1.1° LCA), the Contentious Chamber must justify its decision step by step and⁶⁴:

- pronounce a technical dismissal if the file does not contain or does not contain sufficient elements likely to lead to a sanction or if it contains a technical obstacle preventing it from making a decision;

- or pronounce an opportunistic dismissal if, despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate to it.

64 Market Court (Court of Appeal of Brussels), September 2, 2020, 2020/AR/329, p. 18.

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not appropriate given the priorities of the DPA as specified and illustrated in the Non-Action Policy of the Litigation Chamber⁶⁵.

59. In the event of a non-action classification based on multiple grounds (respectively, technical and/or opportunistic non-action), the grounds for non-action must be addressed in order of importance⁶⁶.

60. In light of the above and based on the powers conferred upon it by the legislator under Article 100.1 of the LCA, the Litigation Chamber therefore decides to proceed with the non-action classification of the complaint, in accordance with Article 100.1, 1° of the LCA. In this case, regarding the complaint filed by the complainant, the Litigation Chamber was asked to determine whether the defendant rightly refused to comply with the request for erasure and opposition made by the complainant concerning the disputed information present on the defendant's website. It follows from the analysis above that the defendant indeed rightly refused to respond to the complainant's requests (points 25 to 57).

61.

In the present case, the Litigation Chamber therefore issues a technical non-action classification pursuant to Article 100.1, 1° of the LCA, since, following the examination of the complaint and the facts it reports, the Litigation Chamber concludes that it does not have elements likely to lead to a finding of violation of the GDPR on the part of the defendant.

IV. Draft decision within the framework of the single window mechanism in execution of Article 60.3 of the GDPR – applicability of Article 60.8 of the GDPR

62.

In doing so, the Litigation Chamber adopts a draft decision pursuant to Article 60.3 of the GDPR. Consequently, the Litigation Chamber will communicate this draft decision to the data protection authorities that have declared themselves concerned by this complaint, including the CNIL to which the complaint was submitted.

63. This draft decision rejects the complainant's complaint as it stands within the meaning of Article 60.8 of the GDPR. Article 60.8 of the GDPR provides as follows in this case: "By way of derogation from paragraph 7, when a complaint is refused or rejected, the supervisory authority with which the complaint has been lodged adopts the decision, notifies the complainant, and informs the data controller."

65

Non-Action Policy of the Litigation Chamber, 06/18/2021, available at <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

66 Non-Action Policy of the Litigation Chamber, 06/18/2021, point 3 ("In what cases is my complaint likely to be classified as non-action by the Litigation Chamber?"), available at <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.